

The Khadi And Village Industries Commission Employees (Classification, Control And Appeal) Regulations, 2003

Source: <https://indiankanoon.org/doc/194403675/>

Skip to main content

Legal Document View

Tools for analyzing structure and cite text of judgments

Unlock Advanced Research with

PRISM

AI

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

Know your Kanoon

-

Doc Gen Hub

-

Counter Argument

-

Case Predict AI

-

Talk with IK Doc

-

...

Upgrade to Premium

[Cites

0

, Cited by

0

]

Union of India - Act

The Khadi And Village Industries Commission Employees (Classification, Control And Appeal) Regulations, 2003

UNION OF INDIA

India

The Khadi And Village Industries Commission Employees (Classification, Control And Appeal) Regulations, 2003

Rule

THE-KHADI-AND-VILLAGE-INDUSTRIES-COMMISSION-EMPLOYEES-CLASSIFICATION-CONTROL-AND-APPEAL-REGULATIONS-2003 of 2003

Published on 26 May 2003

Commenced on 26 May 2003

[This is the version of this document from 26 May 2003.]

[Note: The original publication document is not available and this content could not be verified.]

The Khadi And Village Industries Commission Employees (Classification, Control And Appeal) Regulations, 2003
1972.

G.S.R. 433(E)-Dated 26th May, 2003. - [In exercise of the powers conferred under Sub-section (3) of Section 27 of the Khadi and Village Industries Commission Act, 1956 (61 of 1956), the Central Government, hereby makes the following regulations to amend the Khadi and Village Industries Commission Employees (Classification, Control and Appeal) Regulations, 2003, namely:-]

[Substituted by Notification No. G.S.R. 91(E) dated 19.02.2007 (w.e.f. 14.10.2004).]

Part-I General

1.

Short title and commencement.

(1)

These Regulations may be called the Khadi and Village Industries Commission Employees (Classification, Control and Appeal) Regulations, 2003.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these regulations, unless the context otherwise requires:-

(a)

"Appointing authority" in relation to an employee means

(i)

the authority empowered to make appointments to the service of which the employee is for the time being a member or to the grade of the service in which the employee is for the time being included, or

(ii)

the authority empowered to make appointments to the post which the employee for the time being holds, or the authority which appointed the employee to such service, grade or post, as the case may be, whichever authority is the highest authority;

(b)

"Chairman" means the Chairman appointed under sub-section (3) of Section 4 of the Khadi and Village Industries Commission Act, 1956 (hereinafter referred to as the Act);

(c)

"Chief Executive Officer" means the Chief Executive Officer appointed under clause (d) of sub-section (2) of Section 4 of the Act;

(d)

"Commission" means the Khadi and Village Industries Commission, established under Section 4 of the Act;

(e)

"Disciplinary authority" means the authority competent under these regulations to impose on an employee any of the penalties specified in clauses (i) to (v) of regulation 9 institute disciplinary proceedings against any employee for the imposition of any of the penalties mentioned in clauses (vi) to (x) of regulation 9 notwithstanding that such disciplinary authority is not competent vide these regulations to impose any of the latter penalties;

(i)

"Employee" means any person appointed by the Commission to any service or post in connection with the affairs of the Commission, including the employees whose services are placed by the Commission at the disposal of a Company, Board, Bank, local authority, an organisation, State Government or the Central Government notwithstanding the fact that his salary is drawn from sources other than that of the Commission;

(g)

"Financial Adviser" means the Financial Adviser appointed under clause (c) of sub-section (2) of Section 4 of the Act;

(h)

"Schedule" means the Schedule to these regulations;

3.

Application.

(1)

These regulations shall apply to every employee appointed to any post under the Commission whether borne on regular or trading or schematic or work charged or project establishment, or any other official whose wages or salary or honorarium are paid by the Commission but shall not apply to

(a)

any person appointed with specific contractual stipulation that he could be discharged from service on one month's notice,

(b)

any person in casual appointment,

(c)

any person appointed on deputation, training, or otherwise from other departments, to whom the rule of parent department shall apply.

(2)

Notwithstanding anything contained in sub-regulation (1) above, the Commission may, by order and with previous sanction of the Central Government, exclude any class of employees from the application of all or any of these regulations.

Part-II Classification

4.

Classification of Posts.

(1)

The post of the Commission shall be classified as follows:

Sr.

No.

Description

of Posts

Classification

of posts

1

A

post carrying a pay or a scale of pay with a maximum of not less than Rs. 13,500

Group

'A'

2

A

post carrying a pay or a scale of pay with a maximum of not less than Rs. 9,000 but less than Rs. 13,500

Group

'B'

3

A

post carrying a pay or a scale of pay with a maximum of not less than Rs. 4,000 but less than Rs. 9,000

Group

'C'

4

A

post carrying a pay or a scale of pay the maximum of which is Rs. 4,000 or less.

Group

'D'

(2)

Each of the above Groups shall consist of post and grades of services specified in the Schedule.

(3)

All the posts shall be referred to in all official communications by the above classification.

(4)

All references to Class-I, Class-II, Class-III and Class-IV in all rules, orders, regulations, instructions, schedules, notifications in force, immediately before the commencement of these regulations shall be construed as reference to

Group "A" Group "B", Group "C" and Group "D" respectively and any reference to "Class or Classes" therein in this context shall be construed as reference to "Group or Groups", as the case may be.

Part-III Appointing And Disciplinary Authorities

5.

Appointing Authority.

-All appointments of employees under the Commission shall be made by the Commission or by the authorities to whom such powers have been delegated by the Commission from time to time.

6.

Disciplinary Authority.

(1)

The Commission may impose any of the penalties specified in regulation 9 on any employee.

(2)

Without prejudice to the provisions of sub-regulation (1) any of the penalties specified in regulation 9 may be imposed on an employee by the appointing authority or the authority specified in the Schedule in this behalf by a general or special order of the Commission.

7.

Authority to institute proceedings.

(1)

The Commission or any other empowered by it by general or special order may

(a)

institute disciplinary proceedings against any employee;

(b)

direct a Disciplinary Authority to institute disciplinary proceedings against any employee on whom that Disciplinary Authority is competent to impose under these regulations any of the penalties specified in regulation 9.

(2)

A Disciplinary Authority competent under these regulations to impose any of the penalties specified in clauses (i) to (v) of regulation 9 may institute disciplinary proceedings against any employee for the imposition of the any of penalties specified in clauses (vi) to (x) of regulation 9 notwithstanding that such disciplinary authority is not competent under these regulations to impose any of the later penalties.

Part-IV Suspension

8.

Suspension.

(1)

The appointing authority or any authority to which it is subordinate or the disciplinary authority or any other authority empowered in that behalf by the Commission, by a general or special order, may place an employee under suspension

(a)

where a disciplinary proceeding against him is contemplated or is pending; or

(b)

where, in the opinion of the authority aforesaid, he has engaged himself in activities prejudicial to the interest of the security of the State; of

(c)

where a case against him in respect of any criminal offence is under investigation, inquiry or trial :

Provided that, except in case of an order of suspension made by an authority lower than the appointing authority, such authority shall forthwith report to the appointing authority the circumstances in which the order was made.

(2)

An employee shall be deemed to have been placed under suspension by an order of appointing authority

(a)

with effect from the date of his detention, if he is detained in custody, whether on a criminal charge or otherwise for a period exceeding forty-eight hours;

(b)

with effect from the date of his conviction, if, in the event of a conviction for an offence, he is sentenced to a term of

imprisonment exceeding forty-eight hours and is not forthwith dismissed or removed or compulsorily retired consequent to such conviction.

Explanation. - The period of forty-eight hours referred to in clause (b) of this sub-regulation shall be computed from the commencement of the imprisonment after the conviction and for this purpose, intermittent periods of imprisonment, if any, shall be taken into account.

(3)

Where a penalty of dismissal, removal or compulsory retirement from service imposed upon an employee under suspension is set aside in appeal on review under these regulations and the case is remitted for further inquiry or action or with any other directions, the order of his suspension shall be deemed to have continued in force, on and from the date of the original order of dismissal, removal or compulsory retirement and shall remain in force until further orders.

(4)

Where a penalty of dismissal, removal or compulsory retirement from service imposed upon an employee is set aside or declared or rendered void in consequence of or by a decision of a Court of Law and the disciplinary authority, on a consideration of the circumstances of the case, decides to hold further inquiry against him on the allegations on which the penalty of dismissal, removal or compulsory retirement was originally imposed, the employee shall be deemed to have been placed under suspension by the appointing authority from the date of the original order of dismissal, removal or compulsory retirement and shall continue to remain under suspension until further orders:

Provided that no such further inquiry shall be ordered unless it is intended to meet a situation where the court has passed an order purely on technical grounds without going into the merits of the case.

(5)

(a)

An order of suspension made or deemed to have been made under this regulation shall continue to remain in force until it is modified or revoked by the authority competent to do so.

(b)

Where an employee is suspended or is deemed to have been suspended (whether in connection with any disciplinary proceedings or otherwise) and any other disciplinary proceedings is commenced against him during the continuance of that suspension, the authority competent to place him under suspension may, for reasons to be recorded by him in writing, direct that the employee shall continue to be under suspension until the termination of all or any of such proceedings.

(c)

An order of suspension made or deemed to have been made under this regulation may at any time be modified or revoked by the authority which made or is deemed to have made the order or by any authority to which that authority is subordinate.

Part-V Penalties And Disciplinary Authorities

9.

Penalties.

- The following penalties may, for good and sufficient reasons and as hereinafter provided, be imposed on an employee of the Commission, namely:-

Minor Penalties

(i)

censure;

(ii)

withholding of his promotion;

(iii)

recovery from his pay of the whole or part of any pecuniary loss caused by him to the Commission by negligence or breach of orders;

(iv)

reduction to a lower stage in the time-scale of pay for a period not exceeding 3 years, without cumulative effect and not adversely affecting his pension.

(v)

withholding of increments of pay;

Major Penalties

(vi)

save as provided for in clause (iv), reduction to a lower stage in the time scale of pay for a specified period, with further directions as to whether or not the employee will earn increments of pay during the period of such reduction and whether on the expiry of such period, the reduction will or will not have the effect of postponing the future increments of his pay;

(vii)

reduction to a lower time scale of pay, grade, post or service which shall ordinarily be a bar to the promotion of the employee to the time scale of pay, grade, post or service from which he was reduced, with or without further directions regarding conditions of restoration to the grade or post or service from which the employee was reduced and his seniority and pay on such restoration to that grade, post or service;

(viii)

Compulsory retirement;

(ix)

removal from service of the Commission which shall not be a disqualification for future employment in the Commission or Government;

(x)

dismissal from service which shall ordinarily be a disqualification for future employment in the Commission or Government;

Provided that, in every case in which the charge of possession of assets disproportionate to known source of income or the charge of acceptance from any person of any gratification, other than legal remuneration, as a motive or reward for doing or forbearing to do any official act is established, the penalty mentioned in clause (ix) or clause (x) shall be imposed;

Provided further that in any exceptional case and for special reasons recorded in writing any other penalty may be imposed.

Explanation. - The following shall not amount to a penalty within the meaning of this regulation, namely:

(i)

withholding of increment of an employee on account of his failure to pass any departmental examination which may have been prescribed governing his service condition;

(ii)

stoppage of an employee at the Efficiency Bar in the time scale of pay on the ground of his un-fitness to cross the bar;

(iii)

non-promotion of an employee, whether in a substantive or officiating capacity, after consideration of his case, to a service, grade or post for promotion to which he is eligible:

(iv)

reversion of an employee officiating in a higher service, grade or post to a lower service, grade or post, on the ground that he is considered to be unsuitable for such higher Service, grade or post or on any administrative ground unconnected with his conduct;

(v)

reversion of an employee appointed on probation to any other service, grade or post, to his permanent service, grade or post during or at the end of the period of probation in accordance with the terms of his appointment or the rules, regulations and orders governing such probation;

(vi)

replacement of the services of an employee, whose services had been borrowed from a State Government or any authority under the control of a State Government, at the disposal of the State Government or the authority from which the services of such employee had been borrowed;

(vii)

compulsory retirement of an employee in accordance with the provisions relating to his superannuation or retirement;

(viii)

termination of the services

(a)

of an employee appointed on probation, during or at the end of the period of his probation, in accordance with the terms

of his appointment or the rules, regulations and orders governing such probation, or

- (b)
of a temporary employee, or
- (c)
of an employee, employed under an agreement, in accordance with the terms of such agreement.

Part-VI Procedure For Imposing Major Penalties

10.

Procedure for imposing major penalties.

(1)

No order imposing any of the penalties specified in clauses (vi) to (x) of regulation 9 shall be made except after an inquiry held, as far as may be, in the manner provided in this regulation and regulation 11, or in the manner provided by the public Servants (Inquiries) Act, 1850 (

37 of 1850

), where such inquiry is held under that Act.

(2)

Whenever the Disciplinary Authority is of the opinion that there are grounds for inquiring into the truth of any imputation of misconduct or misbehaviour against an employee, it may itself inquire into, or appoint under this regulation or under the provisions of the Public Servants (Inquiries) Act. 1850 as the case maybe, an authority to inquire into the truth thereof.

Explanation - Where the disciplinary authority itself holds the inquiry, any reference in sub-regulation (7) to sub-regulation (20) and in sub-regulation (22) to the inquiring authority shall be construed as a reference to the Disciplinary Authority.

(3)

Where it is proposed to hold an inquiry against an employee under this regulation 11, the Disciplinary Authority shall draw up or cause to be drawn up-

(i)

the substance of the imputations of misconduct or misbehaviour into definite and distinct articles of charge;

(ii)

a statement of the imputations of misconduct or misbehaviour in support of each article of charge, which shall contain

(a)

a statement of all relevant facts including any admission or confession made by the employee;

(b)

a list of documents by which, and a list of witnesses by whom, the articles of charge are proposed to be sustained.

(4)

The Disciplinary Authority shall deliver or cause to be delivered to an employee a copy of the articles of charge, the statement of the imputations of misconduct or misbehaviour and a list of documents and witnesses by which each article or charges is proposed to be sustained and shall require the employee to submit, within such time as may be specified, a written statement of his defence and state whether he desires to be heard in person.

(5)

(a)

On receipt of the written statement of defence, the disciplinary authority may itself inquire into such of the articles of charge as are not admitted, or if it considers it necessary to do so, appoint under sub-regulation (2), an Inquiring Authority for the purpose, and where all the articles of charge have been admitted by the employee in his written statement of defence, the Disciplinary Authority shall record its findings on each charge after taking such evidence as it may think fit and shall act in the manner laid down in regulation 11.

(b)

If no written statement of defence is submitted by the employee the Disciplinary Authority may, itself inquire into the articles of charge, or may, if it considers it necessary to do so, appoint, under sub-regulation (2), an inquiring authority for the purpose.

(c)

Where the Disciplinary Authority itself inquires into any article of charge or appoints an inquiring authority for holding any

inquiry into such charge, it may, by an order, appoint an employee or a legal practitioner, to be known as the "Presenting Officer" to present on its behalf the case in support of the articles of charge.

(6)

The Disciplinary Authority shall, where it is not the Inquiring Authority, forward to the Inquiring Authority

(i)

a copy of the articles of charge and the statement of the imputations of misconduct or misbehaviour ;

(ii)

a copy of the written statement of the Defence, if any, submitted by the employee;

(iii)

a copy of the statements of witnesses, if any, referred to in sub-regulation (3);

(iv)

evidence proving the delivery of the documents referred to in sub-regulation (3) to the employee; and

(v)

a copy of the order appointing the "Presenting Officer"

(7)

The employee shall appear in person before the Inquiring Authority on such day and at such time within ten working days from the date of receipt by the inquiring authority of the articles of charge and the statement of the imputations of misconduct or misbehaviour, as the Inquiring Authority may, by notice in writing, specify, in this behalf, or within such further time, not exceeding ten days, as the Inquiring Authority may allow.

(8)

(a)

The employee may take assistance of any other employee posted in any office either at his headquarters or at the place where the inquiry is held, to present the case on his behalf, but may not engage a legal practitioner for the purpose, unless the Presenting Officer appointed by the Disciplinary Authority is a legal practitioner, or, the Disciplinary Authority, having regard to the circumstances of the case, so permits:

Provided that the employee may take the assistance of any other employee posted at any other station, if the Inquiring Authority having regard to the circumstance of the case, and for reasons to be recorded in writing so permits.

(b)

The employee may also take the assistance of a retired employee to present the case on his behalf, subject to such conditions as may be specified by the Commission from time to time by general or special order in this behalf.

(9)

If the employee who has not admitted any of the articles of charge in his written statement of defence or has not submitted any written statement of defence, appears before the Inquiring Authority, such authority shall ask him whether he is guilty or has any defence to make and if he pleads guilty to any of the articles of charge, the Inquiring Authority shall record the plea, sign the record and obtain the signature of the employee thereon.

(10)

The Inquiring Authority shall return a finding of guilt in respect of those articles of charge to which the employee pleads guilty.

(11)

The Inquiring Authority shall, if the employee fails to appear within the specified time or refuses or omits to plead, require the Presenting Officer to produce the evidence by which he proposes to prove the articles of charge, and shall adjourn the case to a later date not exceeding thirty days, after recording an order that the employee may, for the purpose of preparing his defence

(i)

inspect within five days of the order or within such further time not exceeding five days as the Inquiring Authority may allow, the documents specified in the list referred to in sub-regulation (3);

(ii)

submit a list of witnesses to be examined on his behalf;

Note. - If the employee applies orally or in writing for the supply of copies of the statements of witnesses mentioned in the list referred to in sub-regulation (3), the Inquiring Authority shall furnish him with such copies as early as possible and in any case not later than three days before the commencement of the examination of the witnesses on behalf of

the Disciplinary Authority.

(iii)

give a notice within ten days of the order or within such further time not exceeding ten days as the Inquiring Authority may allow, for the discovery or production of any documents which are in the possession of the commission but not mentioned in the list in the list referred to in sub-regulation (3).

Note - The employee shall indicate the relevance of the documents required by him to be discovered or produced by the Commission.

(12)

The Inquiry Authority shall, on receipt of the notice for the discovery or production of documents, forward the same or copies thereof to the authority in whose custody or possession the documents are kept, with a requisition for the production of the documents by such date as may be specified in such requisition :

Provided that the Inquiring Authority may, for reasons to be recorded by it in writing, refuse to requisition such of the documents as are, in its opinion, not relevant to the case.

(13)

On receipt of the requisition referred to in sub-regulation (12), every authority having the custody or possession of the requisitioned documents shall produce the same before the Inquiring Authority :

Provided that if the authority having the custody or possession of the requisitioned documents is satisfied for reasons to be recorded by it in writing that the production of all or any of such documents would be against the public interest or security of the State, it shall inform the Inquiring Authority accordingly and the Inquiring Authority shall, on being so informed, communicate the information to the employee and withdraw the requisition made by it for the production or discovery of documents.

(14)

On the date fixed for the inquiry, the oral and documentary evidence by which the articles of charge are proposed to be proved shall be produced by or on behalf of the Disciplinary Authority. The witnesses shall be examined by or on behalf of the Presenting Officer and may be cross-examined by or on behalf of the employee. The Presenting Officer shall be entitled to re-examine the witness on any points on which they have been cross-examined, but not on any new matter, without the leave of the Inquiring Authority. The Inquiring authority may also put such questions to the witnesses as it thinks fit.

(15)

If it shall appear necessary before the close of the case on behalf of the Disciplinary Authority, the Inquiring Authority may, in its discretion, allow the Presenting Officer to produce evidence not included in the list given to the employee or may itself call for new evidence or recall and re-examine any witness and in such case the employee shall be entitled to have, if he demands it, a copy of the list of further evidence proposed to be produced and an adjournment of the inquiry for three clear days before the production of such new evidence, exclusive of the day of adjournment and the day to which the inquiry is adjourned. The inquiring Authority shall give the employee an opportunity of inspecting such documents before they are taken on the record. The Inquiring Authority may also allow the employee to produce new evidence, if it is of the opinion that the production of such evidence is necessary in the interest of justice.

Note - New evidence shall not be permitted or called for or any witness shall not be recalled to fill up any gap in the evidence. Such evidence may be called for only when there is an inherent lacuna or defect in the evidence which has been produced originally.

(16)

When the case for the Disciplinary Authority is closed, the employee shall be required to state his defence, orally or in writing, as he may prefer. If the defence is made orally, it shall be recorded, and the employee shall be required to sign the record. In either case, a copy of the statement of defence shall be given to the Presenting Officer, if any, appointed.

(17)

The evidence on behalf of the employee shall then be produced. The employee may examine himself in his own behalf if he so prefers. The witnesses produced by the employee shall then be examined and shall be liable to cross examination, re-examination and examination by the Inquiring Authority according to the provisions applicable to the witnesses for the Disciplinary Authority.

(18)

The Inquiry Authority may, after the employee closes his case, and shall, if the employee has not examined himself,

generally question him on the circumstances appearing against him in the evidence for the purpose of enabling the employee to explain any circumstances appearing in the evidence against him.

(19)

The Inquiring Authority may, after the completion of the production of evidence, hear the Presenting Officer, if any, appointed and the employee, or permit them to file written briefs of their respective case, if they so desire.

(20)

If the employee to whom a copy of the articles of charge has been delivered, does not submit the written statement of defence on or before the date specified for the purpose or does not appear in person before the Inquiring Authority or otherwise fails or refuses to comply with the provisions of this regulation, the Inquiring Authority may hold the inquiry ex-parte.

(21)

(a)

Where a Disciplinary Authority competent to impose any of the penalties specified in clauses (i) to (v) of regulation 9 [but not competent to impose any of the penalties specified in clauses (vi) to (x) of regulation 9], has itself inquired into or caused to be inquired into the articles of any charge and that authority, having regard to its own findings or having regard to its decision on any of the findings of any Inquiring Authority appointed by it, is of the opinion that the penalties specified in clauses (vi) to (x) of regulation 9 should be imposed on the employee, that authority shall forward the records of the inquiry to such Disciplinary Authority as is competent to impose last mentioned penalties.

(b)

The Disciplinary Authority to which the records are so forwarded may act on the evidence on the record or may, if it is of the opinion that further examination of any of the witnesses is necessary in the interests of justice, recall the witnesses and examine, cross-examine and re-examine the witnesses and may impose on the employee such penalty as it may deem fit in accordance with these regulations.

(22)

Whenever any Inquiring Authority, after having heard and recorded the whole or any part of the evidence in an inquiry ceases to exercise jurisdiction therein, and is succeeded by another Inquiry Authority which has, and which exercises, such jurisdiction, the Inquiring Authority so succeeding may act on the evidence so recorded by its predecessor, or partly recorded by its predecessor and partly recorded by itself:

Provided that if the succeeding Inquiry Authority is of the opinion that further examination of any of the witnesses whose evidence has already been recorded is necessary in the interests of justice, it may recall, examine, cross-examine and re-examine any such witnesses as hereinbefore provided.

(23)

(i)

After the conclusion of the inquiry, a report shall be prepared and it shall contain

(a)

the articles of charge and the statement of the imputations of misconduct or misbehaviour;

(b)

the defence of the employee in respect of each article of charge;

(c)

an assessment of the evidence in respect of each article of charge;

(d)

the findings on each article of charge and reasons therefore.

Explanation. - If in the opinion of the Inquiring Authority the proceedings of the inquiry establish any article of charge different from the original articles of the charge, it may record its findings on such article of charge :

Provided that the findings on such article of charge shall not be recorded unless the employee has either admitted the facts on which such article of charge is based or has had a reasonable opportunity of defending himself against such article of charge.

(ii)

The Inquiring Authority, where it is not itself the Disciplinary Authority, shall forward to the Disciplinary Authority the records of inquiry which shall include-

(a)

the report prepared by it under clause (i);

(b)

the written statement of defence, if any, submitted by the employee;

(c)

the oral and documentary evidence produced in the course of the inquiry;

(d)

written briefs, if any, filed by the Presenting Officer or the employee or both during the course of the inquiry; and

(e)

the orders, if any, made by the Disciplinary Authority and the Inquiring Authority in regard to the inquiry.

11.

Action on the inquiry report.

(1)

The Disciplinary Authority, if it is not itself the inquiring authority may, for reasons to be recorded by it in writing, remit the case to the Inquiring Authority for further inquiry and report and the Inquiring Authority shall thereupon proceed to hold the further inquiry according to the provisions of regulation 10, as far as maybe.

(2)

The Disciplinary Authority shall forward or cause to be forwarded a copy of the report of the inquiry, if any, held by the Disciplinary Authority or where the Disciplinary Authority is not the Inquiring Authority, a copy of the report of the Inquiring Authority together with its own tentative reasons for disagreement, if any, with the findings of the Inquiring Authority on any article of charge to the employee who shall be required to submit, if he so desires, his written representation or submission to the Disciplinary Authority, within 15 days, irrespective of whether the report is favourable or not to the employee.

(3)

The Disciplinary Authority shall consider the representation, if any, submitted by the employee and record its findings before proceedings further in the matter as specified in sub-regulations (4) and (5).

(4)

If the Disciplinary Authority having regard to its findings on all or any of the articles of charge is of the opinion that any of the penalties specified in clauses (i) to (v) of regulation 9 should be imposed on the employee it shall, notwithstanding anything contained in regulation 12, make an order imposing such penalty.

(5)

If the Disciplinary Authority having regard to its findings on all or any of the articles of charge and on the basis of the evidence adduced during the inquiry is of the opinion that any of the penalties specified in clauses (vi) to (x) of regulation 9 should be imposed on the employee, it shall make an order imposing such penalty and it shall not be necessary to give the employee any opportunity of making representation on the penalty proposed to be imposed.

12.

Procedure for imposing minor penalties.

(1)

Subject to the provisions of sub-regulation (4) of regulation 11, no order imposing on an employee any of the penalties specified in clause (i) to (v) of regulation 9 shall be made except after

(a)

informing the employee in writing of the proposal to take action against him and of the imputations of misconduct or misbehaviour on which it is proposed to be taken, and giving him reasonable opportunity of making such representation as he may wish to make against the proposal;

(b)

holding an inquiry in the manner laid down in sub-regulations (3) to (23) of regulation 10 in every case in which the Disciplinary Authority is of the opinion that such inquiry is necessary;

(c)

taking the representation, if any, submitted by the employee under clause (a) and the record of inquiry, if any, held under clause (b) into consideration; and

(d)

recording a finding on each imputation of misconduct or misbehaviour.

(2)

Notwithstanding anything contained in clause (b) of sub-regulation (1), if in a case it is proposed after considering the representation, if any, made by the employee under clause (a) of that sub-regulation, to withhold increments of pay and such withholding of increments is likely to affect adversely the amount of pension payable to the employee or to withhold increments of pay for a period exceeding three years or to withhold increments of pay with cumulative effect for any period, an inquiry shall be held in the manner laid down in sub-regulations (3) to (23) of regulation 10 before making any order imposing on the employee any such penalty.

(3)

The record of the proceedings in such cases shall include

(i)

a copy of the intimation to the employee of the proposal to take action against him;

(ii)

a copy of the statement of imputations of misconduct or misbehaviour delivered to him;

(iii)

his representation, if any;

(iv)

the evidence produced during the enquiry;

(v)

the finding on each imputation of misconduct or misbehaviour ; and

(vi)

the orders on the case together with the reasons therefore.

13.

Communication of Orders.

- Orders made by the Disciplinary Authority shall be communicated to the employee who shall also be supplied with a copy of its finding on each article of charge, or where the Disciplinary Authority is not the Inquiring Authority, a statement of the findings of the Disciplinary Authority together with brief reasons for its disagreement, if any, with the findings of the Inquiring Authority.

14.

Common Proceedings.

(1)

Where two or more employees are concerned in any case, the Commission or any authority competent to impose penalty of dismissal from service on all such employees may make an order directing that disciplinary action against all of them may be taken in a common proceeding.

Note - If the authorities competent to impose the penalty of dismissal on such employees are different, an order for taking disciplinary action in a common proceeding may be made by the highest of such authorities with the consent of the others.

(2)

Any such order shall specify

(i)

the authority which may function as the Disciplinary Authority for the purpose of such common proceeding;

(ii)

the penalties specified in regulation 9 which such Disciplinary Authority shall be competent to impose;

(iii)

whether the procedure laid down in regulation 10 and regulation 11 or regulation 12 shall be followed in the proceeding.

15.

Special procedure in certain cases.

- Notwithstanding anything contained in regulations 10 to regulation 14

(i)

where any penalty is imposed on the employee on the ground of conduct which has led to his conviction on a criminal charge, or

(ii)

where the Disciplinary Authority is satisfied for reasons to be recorded by it in writing that it is not reasonably practicable to hold an inquiry in the manner provided in these regulations, or

(iii)

where the Commission is satisfied that in the interest of the security of the State, it is not expedient to hold any inquiry in the manner provided in these regulations.

The Disciplinary Authority may consider the circumstances of the case and make such orders thereon it deems fit :

Provided that the employee may be given an opportunity of making representation on the penalty proposed to be imposed before any order is made in a case under clause (i).

16.

Provisions regarding officers lent to State Governments, etc.

(1)

Where the services of an employee are lent to another Department or to a State Government or any authorities sub-ordinates thereto or to a local or other authority or to any organisation under Central Government (hereinafter in this regulation referred as the "borrowing authority") the borrowing authority shall have the powers of the Appointing Authority for the purpose of placing such employee under suspension and of the Disciplinary Authority for the purpose of conducting disciplinary proceeding against him:

Provided that the borrowing authority shall forthwith inform the commission which lent the services of the employees of the circumstances leading to the order of suspension of such employee or the commencement of the disciplinary proceeding, as the case may be.

(2)

In the light of the findings in the disciplinary proceedings conducted against the employee -

(i)

if the borrowing authority is of the opinion that any of the penalties specified in clauses (i) to (v) of regulation 9 should be imposed on the employee, it may, after consultation with the Commission, make such orders on the case as it deems necessary:

Provided that in the event of a difference of opinion between the borrowing authority and the Commission, the services of the employee shall be replaced at the disposal of the Commission;

(ii)

if the borrowing authority is of the opinion that any of the penalties specified in clauses (vi) to (x) of regulation 9 should be imposed on the employee, it shall replace his services at the disposal of the Commission and transmit to it the proceedings of the enquiry and thereupon the Commission may, if it is the Disciplinary Authority, pass such orders thereon as it may deem necessary, or if it is not the Disciplinary Authority, submit the case to the Disciplinary Authority which shall pass orders on the case as it may deem necessary :

Provided that before passing any such order, the Disciplinary Authority shall comply with the provisions of sub-regulations (4) and (5) of regulation 11.

Explanation. - The disciplinary Authority may make an order under this clause on the record of the inquiry transmitted to it by the borrowing authority or after holding such further inquiry as it may deem necessary, as far as maybe, in accordance with regulation 10.

17.

Provisions regarding officers borrowed from Central/State Government, etc.

(1)

Where an order of suspension is made or. a disciplinary proceeding is conducted against an employee whose services have been borrowed by Commission from Central Government or from a State Government or an authority, subordinate thereto or a local or other authority, the authority lending his services (hereinafter in this regulation referred to as "the lending authority") shall forthwith be informed of the circumstances leading to the order of the suspension of the employee or of the commencement of the disciplinary proceeding, as the case may be.

(2)

In the light of the findings in the disciplinary proceeding conducted against the employee, if the Disciplinary Authority is of the opinion that any of the penalties specified in clauses (i) to (v) of regulation 9 should be imposed on him, it may subject to the provision of sub-regulation (4) of regulation 11, after consultation with the lending authority, pass such orders on the case, as it may deem necessary :

Provided that in the event of a difference of opinion between the Commission and the lending authority, the service of the employee shall be replaced at the disposal of the lending authority;

(3)

Where the Disciplinary Authority is of the opinion that any of the penalties specified in clause (vi) to (x) of regulation 9 should be imposed on the employee, it shall replace the services of such employee at the disposal of the lending authority and transmit to it the proceedings of the inquiry for such action, as it may deem necessary.

Part-VII Appeals

Section 18 omitted by Notification No. G.S.R. 91(E) dated 19.02.2007 (w.e.f. 14.10.2004).

18. Orders against which no appeal lies.

- Notwithstanding anything

contained in this part, no appeal shall lie against -

(i) any order made by the Commission;

(ii) any order of an interlocutory nature or of the nature of a (step-in-aid of) the final disposal of a disciplinary proceeding, other than an order of suspension;

(iii) any order passed by an Inquiring Authority in the course of an inquiry under regulation 10.

19.

Orders against which appeal lies.

- [***]

[Omitted by Notification No. G.S.R. 91(E) dated 19.02.2007 (w.e.f. 14.10.2004).]

An employee may prefer an appeal against all or any of the following orders, namely :

(i)

an order of suspension made or deemed to have been made under regulation 8;

(ii)

an order imposing any of the penalties specified in regulation 9, whether made by the Disciplinary Authority or by any Appellate or Revising Authority;

(iii)

an order enhancing any penalty, imposed under regulation 9.

(iv)

an order which

(a)

denies or varies to his disadvantage his pay, allowances, pension or other conditions of service as regulated by rules, regulations or by agreement; or

(b)

interprets to his disadvantage the provisions of any such rule, regulation or agreement;

(v)

an order

(a)

stopping him at the efficiency bar in the time scale of pay on the ground of his unfitness to cross the bar;

(b)

reverting him while officiating in a higher service, grade or post, to a lower service, grade or post, otherwise than as a penalty;

(c)

reducing or withholding the pension or denying the maximum pension admissible to him under these regulations;

(d)

determining the subsistence and other allowances to be paid to him for the period of suspension or for the period during which he is deemed to be under suspension or for any portion thereof;

(e)

determining his pay and allowance

(i)

for the period of suspension, or

(ii)

for the period from the date of his dismissal, removal or compulsory retirement from service, or from the date of his reduction to a lower service, grade, post, time-scale or stage in a time-scale of pay, to the date of his reinstatement or restoration to his service, grade or post; or

(f)

determining whether or not the period from the date of his suspension or from the date of his dismissal, removal, compulsory retirement or reduction to a lower service, grade, post, time-scale or pay or stage in a time scale of pay to the date of his reinstatement or restoration to his service, grade or post shall be treated as a period spent on duty for any purpose.

Explanation. - In this regulation

(i)

the expression "employee" includes a person who has ceased to be in the service of the Commission;

(ii)

the expression "pension" includes additional pension, gratuity and any other retirement benefit.

20.

Appellate Authority.

(1)

An employee, including person who has ceased to be in the service of the Commission, may prefer an appeal against all or any of the orders specified in regulation 19 to the authority specified in this behalf either in the Schedule or by a general or a special order of the Commission or where no such authority is specified-

(i)

to the commission where such order is made by any other authority;

(ii)

where such employee is or was holder of a Group 'C' or Group 'D' post, to the authority to which the authority making the order appealed against is immediately subordinate.

(2)

Notwithstanding anything contained in sub-regulation (1)-

(i)

an appeal against an order in a common proceeding held under regulation 14 shall lie to the authority to which the authority functioning as the Disciplinary Authority for the purpose of that proceeding is immediately sub-ordinate :

Provided that where such authority is sub-ordinate to the Commission in respect of an employee for whom Commission is the Appellate Authority in terms of clause (i) of sub-regulation (1), the appeal shall lie to the Commission.

(ii)

where the person who made the order appealed against becomes, by virtue of his subsequent appointment or otherwise, the Appellate Authority in respect of such order, an appeal against such order shall lie to the authority to which such person is immediately subordinate.

(3)

An employee may prefer an appeal against an order imposing any of the penalties specified in regulation 9 to the Commission, where no such appeal lies to it under sub-regulation (1) or sub-regulation (2), if such penalty is imposed by any authority other than the commission, on such employee in respect of his activities connected with his work as an office bearer of an association, federation or union, participating in the joint Consultation and Compulsory Arbitration Scheme.

21.

Period of limitation of appeals.

- No appeal preferred under this part shall be entertained unless such appeal is preferred within a period of forty-five days from the date on which a copy of the order appealed against is delivered to the appellant:

Provided that the Appellate Authority may entertain the appeal after the expiry of the said period, if it is satisfied that the appellant had sufficient cause for not preferring the appeal in time.

22.

From and contents of appeal.

(1)

Every person preferring an appeal shall do so separately and in his own name.

(2)

The appeal shall be presented to the authority to whom the appeal lies, and a copy shall be forwarded by the appellant to the authority, which made the order appealed against. It shall contain all material statements and arguments on which the appellant relies, shall not contain any disrespectful or improper language, and shall be complete in itself.

(3)

The authority which made the order appealed against shall, on receipt of a copy of the appeal, forward the same with its comments thereon together with the relevant records to the Appellate Authority without any unavoidable delay, and without waiting for any direction from the Appellate Authority.

23.

Consideration of appeal.

(1)

In the case of an appeal against an order of suspension, the Appellate Authority shall consider whether in the light of the provisions of regulation 8 and having regard to the circumstances of the case, the order of the suspension is justified or not and confirm or revoke the order accordingly.

(2)

In the case of an appeal against an order imposing any of the penalties specified in regulation 9 or enhancing any penalty imposed under the said regulation, the Appellate Authority shall consider

(a)

whether the procedure laid down in these regulations has been complied with and if not, whether such non-compliance has resulted in the violation of any provisions of the Constitution of India or in the failure of justice;

(b)

whether the findings of the Disciplinary Authority are warranted by the evidence on the record; and

(c)

whether the penalty or the enhanced penalty imposed is adequate, inadequate or severe; and pass orders

(i)

confirming, enhancing, reducing or setting aside the penalty; or

(ii)

remitting the case to the authority which imposed or enhanced the penalties or to any other authority with such direction as it may deem fit in the circumstances of these cases:

Provided that-

(i)

if such enhanced penalty which the Appellate Authority proposes to impose is one of the penalties specified in clauses (vi) to (x) of regulation 9 and an inquiry under regulation 10 has not already been held in the case, the Appellate Authority shall, subject to the provisions of regulation 15, itself hold such inquiry or direct that such inquiry be held in accordance with the provisions of regulation 10 and thereafter, on consideration of the proceedings of such inquiry and make such orders as it may deem fit;

(ii)

if the enhanced penalty which the Appellate Authority proposes to impose is one of the penalties specified in clauses (vi) to (x) of regulation 9 and an inquiry under regulation 10 has been held in the case, the Appellate Authority shall make such orders as it may deem fit after the appellant has been given a reasonable opportunity of making a representation against the proposed penalty; and

(iii)

no order imposing an enhanced penalty shall be made in any other case unless the appellant has been given a reasonable opportunity, as far as may be in accordance with the provisions of regulation 12, of making a representation against such enhanced penalty.

(3)

In an appeal against any other order specified in regulation 19, the Appellate Authority shall consider all the circumstances of the case and make such orders as it may deem just an equitable.

24.

Implementation of orders in appeal.

- The authority which made the order appealed against shall give effect to the orders passed by the Appellate Authority.

Part-VIII Revision And Review

25.

Revision.

(1)

Notwithstanding anything contained in these regulations- (i) the Commission; or

(ii)

the Appellate Authority, within six months of the date of the order proposed to be revised; or

(iii)

any other authority specified in this behalf by the Commission by a general or special order, and within such time as may be prescribed in such general or special order;

may at any time, either on its own motion or otherwise call for the records of any inquiry and revise any order made under these regulations from which an appeal is allowed, but from which no appeal has been preferred or from which no appeal is allowed, and may :

(a)

confirm, modify or set-aside the order; or

(b)

confirm, reduce, enhance or set aside the penalty imposed by the order, or impose any penalty where no penalty has been imposed; or

(c)

remit the case to the authority which made the order to or any other authority directing such authority to make such further inquiry as it may consider proper in the circumstances of the case; or

(d)

pass such other orders as it may deem fit :

Provided that no order imposing or enhancing any penalty shall be made by any revising authority unless the employee concerned has been given a reasonable opportunity of making a representation against the penalty proposed and where it is proposed to impose any of the penalties specified in the clauses (vi) to (x) of regulation 9 or to enhance the penalty imposed by the order sought to be revised to any of the penalties specified in those clauses, and if an inquiry under regulation 10 has not already been held in the case, no such penalty shall be imposed except after an inquiry in the manner laid down regulation 10 subject to the provisions of regulation 15.

(2)

No proceeding for revision shall be commenced until after-

(i)

the expiry of the period of limitation for an appeal, or

(ii)

the disposal of the appeal, where any such appeal has been preferred.

(3)

An application for revision shall be dealt with in the same manner as if it were an appeal under these regulations.

26.

Review.

- The Commission may, at any time, either on its own motion or otherwise review any order passed under these regulations, when any new material or evidence which could not be produced or was not available at the time of passing the order under review and which has the effect of changing the nature of the case, has come, or has been brought to its notice : Provided that no order imposing or enhancing any penalty shall be made by the Commission unless the employee concerned has been given a reasonable opportunity of making a representation against the penalty proposed or where it is proposed to impose any of the major penalties specified in regulation 9 or to enhance the minor penalty imposed by the order sought to be reviewed to any of the major penalties and if an inquiry under regulation 10 has not already been held in the case, no such penalty shall be imposed except after inquiring in the manner laid down in the regulation 10, subject to the provisions of regulation 15.

Part IX ? Miscellaneous

27.

Service of orders, notice, etc.

- Every order, notice and other process made or issued under these regulations shall be served in person on the employee concerned or communicated to him by registered or speed post.

28.

Power to relax time-limit and to condone delay.

- Save as otherwise expressly provided in these regulations, the authority competent under these regulations to make any order may, for good and sufficient reasons or if sufficient cause is shown, extend the time specified in these regulations for anything required to be done under these regulations or condone any delay.

29.

Removal of doubts.

(1)

Any proceedings under the Khadi and Village Industries Commission Employees (Conduct, Discipline and Appeal) Regulations, 1961 pending at the commencement of these regulations shall be continued and disposed of, as far as may be, in accordance with the provisions of these regulations, as if, such proceedings were proceedings under these regulations.

(2)

Nothing in these regulations shall be construed as depriving any person to whom these regulations apply, of any right of appeal which had accrued to him under the regulations, notification or orders in force before the commencement of these regulations.

(3)

An appeal pending at the commencement of these regulations against an order made before such commencement shall be considered and orders thereon shall be made, in accordance with these regulations as if such orders were made and the appeals were preferred under these Regulations.

(4)

As from the commencement of these regulations any appeal or application for review against any orders made before such commencement shall be preferred or made under these regulations, as if such orders were made under these regulations :

Provided that nothing in these regulations shall construed as reducing any period of limitation for any appeal or review provided by any regulation in force before the commencement of these regulations.

30.

Interpretation.

- If any question arises relating to the interpretation of these regulations, it shall be interpreted in accordance with the provisions of the Central Civil Service (Classification, Control and Appeal) Rules, 1965 and related orders and decision of the Government of India.

Schedule

(See Regulation 2 (h))

Table Showing Description of Post Under Regular Establishment, Appointing Authority, Competent to Impose Penalties and Appellate Authority In Respect of the Posts of the Commission

S.No.

Description

of Post

Appointing

Authority

Authority

competent to impose penalties and penalties which it may impose

(with reference to item numbers in regulation 9)

Appellate

Authority

Authority

Penalties

1

2

3

4

5

6

1

Joint

Chief Executive Officer

Commission

Commission

All

2

Deputy

Chief Executive Officer

3

Principal

Scientific Officer

Chairman

(For

minor penalties)(i)to(v)

(i)

to (v)

Commission

(for minor penalties)

4

Director

Chairman

Chairman

All

penalties

Commission

5

Chief

Scientific Officer

Chief

Executive

(For

minor penalties(i)to(v)

Chairman

(for minor penalties)(i)to(v)

6

Deputy

Director

7

Senior

Scientific Officer

Chief

Executive Officer

Chief

Executive

All

penalties

Chairman

8

Civil

Engineer

Joint

Chief Executive Officer /Deputy Chief Executive Officer

(For

minor penalties)(i)to(v)

Chief

Executive Officer (for minor penalties)(i)to(v)

9

Senior

Hindi Officer

Chief

Executive

Chief

Executive

All

penalties

Chairman

10

AssistantDirector

11

Research

Officer

JointChief Executive Officer/Deputy

Chief Executive Officer

(For

minor penalties)(i)to(v)

Chief

Executive Officer (for minor Penalties)(i)to(v)

12

HindiOfficer

13

Senior

Personal Assistant

14

Accounts

Officer

Financial

Adviser

Financial

Adviser

All

penalties

Chairman

Joint

Chief ExecutiveOfficer/Deputy

Chief Executive Officer

(Formior

penalties)(i)to(v)

Financial

Adviser (for minor penalties)(i)to(v)

15

Superintendent

Joint

Chief ExecutiveOfficer/DeputyChief

Executive Officer

Joint

Chief ExecutiveOfficer/Deputy

ChiefExecutive Officer

All

penalties

Chief

Executive Officer

16

Caretaker

17

Law

Officer

18

Senior

Translator

Director

(For

minor penalties (i) to (v))

Joint

Chief ExecutiveOfficer/Deputy

ChiefExecutive Officer (for

minor

penalties (i) to (v)

19

Junior

Engineer

20

Sanitary

inspector

21

Fuel

Chemist/Bio-Chemist

22

Accountant

23

Development

Officer/Designer

24

Librarian

(Publicity)

25

Junior

scientific Officer

26

Sub-Editor

27

Photographer-Cum-Darkroom

Assistant/Deputy Chief Executive Officer

Joint

Chief Executive Officer/Deputy

Chief Executive Officer

Joint

Chief Executive Officer

All

penalties

Chief

Executive Officer

28

Printing

Manager

29

Senior

Artist

30

Stenographer

(Selection Grade)

Director

(For

minor penalties) (i) to (v)

31

Economic

Investigator-I

Joint

Chief Executive Officer/Deputy

Chief Executive Officer (for

minor

penalties (i) to (v)

32

Lecturer

33

Steno-I

(English/Hindi)

34

Assistant

Chemist/Assistant

Foreman

35

Assistant Account /

Auditor-I/Senior

Cashier

36

Machanic

37

Technical

Assistant

38
Craft
Teacher
39
Junior
Translator
40
Junior
Sub-Editor
41
Economic
Investigator-II/
Statistician
42
Exhibition
Assistant
43
Legal
Assistant
44
Artist
45
Assistant
Development Officer/
Assistant
Development Office-III
Chargeman/Supervisor-II
Spinning
Instructor /Analyst
46
Assistant
Lecturer (HRD)
Joint
Chief ExecutiveOfficer/DeputyChief ExecutiveOfficer
Joint
Chief ExecutiveOfficer/DeputyChief ExecutiveOfficer
All
penalties
Chief
Executive Officer
47
Assistant
Librarian
Director
(For
minor Joint Chief Executive
penalties)(i)to (v)
Joint
Chief ExecutiveOfficer/DeputyChief ExecutiveOfficer(For
minor penalties(i)to(v)
48

Supervisor-II
Director
Director
All
penalties
Joint
Chief Executive Officer/Deputy Chief Executive Officer
49
Upper Division Clerk
Deputy Director/Assistant Director
(For
minor Penalties) (i) to (v)
Director
(for minor penalties (i) to (v)
50
Auditor-II
51
Driver
52
Senior Cook
53
Steno-II(English/Hindi)
54
Assistant
Care Taker
55
Fitter
56
Foreman
57
Lower Division Clerk
58
Carpenter
59
Skilled
Artisan
60
Supervisor-III/Mistry
61
Library
Assistant
62
Electrician UBCR! Wardha)
Director
Director
All
Penalties
Joint Chief Executive Officer
/Deputy Chief Executive Officer
63
Assistant Supervisor

64

Drivers

65

Artisans

/Auditor-II/Worker/Fitter /

Mistry

Deputy

Director/AssistantDirector

(For

minor Penalties)(i)to(v)

Director(for minorpenalties)(i)to(v)

66

Instructor

67

Qualified

Machanic

68

Cook

69

CineOperator

70

Plumber

71

LabAttendant

72

Flyer

73

Weaving

/SizingGuide/Weaver

74

Artisan-N

A

75

Potter

76

Carpenter

77

Daftary

78

Lab

Attendant

79

Watchman-cum-cook

80

Helper

/Tapper

81

Apiary

Assistant

Director

Director

All
Penalties
Joint
Chief Executive Officer/Deputy Chief Executive Officer
82

Helper/Gardener/
StoreAttendant/Watchman
83

Lab
Boy
Deputy
Director/AssistantDirector

(For
minor Penalties)(i)to(v)
Director(for minor penalties)(i)to (v)
84

Worker-N-B
85

Watchman
86
Watchman-cum

/Attendant /
Worker
Grade-IIHelper

87
Peon

88
Kiln
Attendant/Skilled
Labour

89
Cane
Weaver
90

Sweeper

Note: For the posts which are not covered in the Schedule or to be created from time to time the appointing authority, authority competent to impose penalties and appellate authority shall be the same authorities as are provided for posts of equivalent pay scales in this Schedule.

Table Showing Description of Post Under Canteen Cadre, Appointing Authority, Authority Competent to Impose Penalties and Appellate Authority in Respect of the Posts of the Commission

S.	No.	Description of Service	Appointing Authority	Authority competent to impose penalties and penalties which it may impose (with reference item numbers in regulation 9)	Appellate Authority
----	-----	------------------------	----------------------	---	---------------------

Authority

Penalties

1

2

3

4

5

6

[1

[Substituted by Notification No. G.S.R. 549(E), dated 12.9.2006 (w.e.f. 19.7.2006).]

Joint Chief Executive Officer 16400-20000

Commission

Commission

All

Penalties

Minister of Agro and Rural Industries

2

Deputy Chief Executive Officer 14300-18300

3

Principal Scientific Officer 12000-16500

4

Director 12000-16500

5

Chief Scientific Officer 10000-15200

Commission

Commission

All penalties excluding minor penalties (i) to (v)

Minister of Agro and Rural Industries

6

Deputy Director 10000-15200

Chief Executive Officer

Minor penalties (i)to(v)

Commission

7

Sr. Scientific Officer 8000-13500

Chief Executive Officer

Chief Executive Officer

All penalties excluding minor penalties (i) to (v)

Commission

8

Civil Engineer 8000-13500

Joint Chief Executive Officer

(For Minor penalties (i) to (v)

Chief Executive Officer]

9

Sweeper

10

Wash

Boy

Following Table shall be substituted by Notification No. G.S.R. 549(E) dated 12.9.2006 and shall be deemed to have been substituted with effect from 14th October, 2004 to 18th July, 2006, namely:

{
1
2
3
4
5
6
"1.
Joint Chief Executive Officer 16400-20000
Commission
Secretary, Small Scale Industries and Agro and Rural
Industries
All penalties
Minister of Agro and Rural Industries
2
Deputy Chief Executive Officer 14300-18300
3
Principal Scientific Officer 12000-16500
4
Director 12000-16500
5
Chief Scientific Officer 10000-15200
Commission
Secretary, Ministry of Agro and Rural Industries
All penalties excluding minor penalties (i) to (v)
Minister of Agro and Rural Industries
6
Deputy Director 10000-15200
Chief Executive Officer
Minor penalties (i)to(v)
Secretary, Ministry of Agro and Rural Industries
7
Sr. Scientific Officer 8000-13500
Chief Executive Officer
Chief Executive Officer
All penalties excluding minor penalties (i) to (v)
Secretary, Ministry of Agro and Rural Industries
8
Civil Engineer 8000-13500
Joint Chief Executive Officer
Minor penalties (i) to (v)
Chief Executive Officer.,"
}]

Note - For the posts which are not covered in the Schedule or to be created from time to time the appointing authority, authority competent to impose penalties and appellate authority shall be the same authorities as are provided for posts of equivalent pay scales in this Schedule.

Table Showing Description of Post Under Marketing Activities, Appointing Authority, Authority Competent to Impose Penalties and Appellate Authority in Respect of the Posts of the Commission

S.
No
Description

of Service
Appointing
Authority
Authority
competent to impose penalties and penalties which it may impose
(with reference to item number in regulation 9)
Appellate
Authority
Authority
Penalties
1
2
3
4
5
6
1
General
Manager
Chairman
Chairman
All
Penalties
Commission
2
Manager-I
/Assistant General Manager
3
Manager
/Deputy Director
Chief
Executive Officer
(For
minor penalties) (I) to (V)
Chairman
for minor penalties (i)to(v)
4
Manager-III
/Assistant Director
5
Arrounts
Officer
6
Account-I
Chief
Executive Officer
Chief
Executive Officer
All
Penalties (For minor penalties) (I) to (V)
Chairman

7

Account

Cashier

8

Accountant-cum-Cashier

Joint

Chief Executive Officer/Deputy Chief Executive

Officer

Chief

Executive Officer for minor Penalties(i)to(v)

9

Assistant

Manager

10

Designer

Joint

Chief Executive Officer/Deputy Chief Executive

Officer

Joint

Chief Executive Officer/Deputy Chief Executive

Officer

All

Penalties (For minor penalties) (I) to (V)

11

Designer-cum-cutter

12

Development

Officer

General

Manager

(For

minor penalties) (i)to(v)

Joint

Chief Executive Officer/Deputy Chief Executive

Officer

(for minor penalties) (i)to (v)

13

GodownIncharge

Joint

Chief Executive Officer

Joint

Chief Executive Officer/Deputy Chief Executive Officer

All

Penalties

Chief

Executive Officer

14

Manager

15

Manager

Cum-Designer

16

ShopFloor Incharge

General

Manager

(For

minor penalties) (i)to(v)

Joint

Chief Executive Officer/Deputy Chief Executive

Officer

(for minor penalties) (i)to (v)

17

Senior

Incharge

18

SeniorTanner

19

Storekeeper-cum-AccOLmtant

20

Superintendent

21

Stenographer(English/Hindi)

22

Assistant

Developmentofficer

23

Accountant-II

24

Accountant-III

25

Accountant-III/

Cashier

26

Accountant-III/

Cashier-I

27

AssistantAccountant

28

Assistant

Cutter Master

29

Assistant

Decorator

30

Assistant

-Incharge/Salesman-I

31

Assistant

Manager/Supervisor

32

Cashier

Joint

Chief Executive Officer
Joint
Chief Executive Officer/Deputy Chief Executive Officer
All
Penalties
Chief
Executive Officer
33
Decorator
34
DriverGrade-I
35
Electrical
Foreman
General
Manager
(For
minor penalties) (i)to(v)
Joint
Chief Executive Officer/Deputy Chief Executive Officer (For
minor penalties) (i)to(v)
36
Electrical
Supervisor
37
Foreman/Mechani
(Assistant
Development
Officer)
38
HeadCashier
39
Incharge
Teclmical
40
Junior
Manager
41
Manager-II
42
Mechanic
Foreman
43
Mechanic
Operator
44
QualityInspector
45
Readymade
Incharge/Senior
Cutter

/Artist/Junior Cutter
46
S.Q.C.
Incharge
47
Salesman-I
48
Salesman
/Girls-I
49
ShiftSupervisor (AssistantDevelopment
Officer)
JointChief ExecutiveOfficer
JointChief ExecutiveOfficer
/Deputy Chief Executive Officer
All
Penalties
Chief
Executive Officer
50
Shop
floor Incharge-II
51
Senior
CuttonSelector
General
Manager
(For
minor penalties)(i) to (v)
JointChief ExecutiveOfficer
/Deputy Chief Executive Officer(For
minor penalties)(i) to (v)
52
Store
Clerk/Purchase Incharge/Sales-I
53
Storekeeper-I
54
Supervisor-I
55
Turner
/Superintendent./Manager
Senior Instructor
56
Vastragar
Incharge
57
AccountClerk/Storekeeper/
Supervisor-II/Steno
GeneralManager/
Direcor(Marketing)

GeneralManager/
Direcor(Marketing)
All
Penalties
JointChief ExecutiveOfficer
/Deputy Chief Executive Officer
58
Account
Clerk-cum-Cashier
59
Accounts
Clerk
60
Accountant-IV
Manager-I
/Assistant General
(For
minor penalties) (i) to (v)
General
Manager/Director (Marketing)(for minor penalties)(i) to (v)
61
Cashier
Manager
/Manager-II/Deputy/Director
62
Cashier/(UpperDivision Clerk)
63
Fitter
64
Godown
keeper
65
Junior
Cashier
66
Junior
Cotton Selector
67
Mechanical-cum-Electrician
68
Quality
Instructor-II
GeneralManager/
Direcor(Marketing)
GeneralManager/
Direcor(Marketing)
All
Penalties
JointChief ExecutiveOfficer
/Deputy Chief Executive Officer
69

Sales
man Girls-II
70
Salesman-III
Cashier
71
Senior
Salesgirl
72
Steno
/AccountsClerk /Skilled worker
Manager-I
/Assistant General Manager/Manager-II/Deputy Director
(For
minor penalties)(i) to (v)
General
Manager/Director (Marketing) (for minor penalties)(i) to (v)
73
Steno-II
74
Steno-II
(Typist)
75
Storekeeper
76
StorekeeperIACCOIUItsClerk
77
Storekeepet-I
78
Supervisor-II
79
Upper
Division Clerk!(Salesman-II)
80
UpperDivisionClerk
(Accountant)
81
UpperDivisionclerk
(Cashier-II)
82
Assistant
Storekeeper
83
Blacksmith
84
Carpenter
85
Checker
86
Clerk
Typist

87

Driver

General

Manager/Director (Marketing)

General

Manager/Director (Marketing)

All

penalties

JointChief ExecutiveOfficer

/Deputy Chief Executive Officer

88

JuniorSalesman/Girls

89

Lower

DivisionClerk

90

Lower

DivisionClerk (typist)

Manager-I

/ Assistant General Manager-II/Deputy Director

(For

minor penalties)(i) to (v)

General

Manager/Director (Marketing)(for minor penalties)(i) to (v)

91

Lower

DivisionClerk Accounts)

92

Salesman

93

SalesmanIGirls-III

94

Salesman-II

/Junior

Instructor

95

Store

Assistant and Clerk-cum-Typist

96

Store

Clerk

97

Timekeeper

98

Turner

99

Typist/Clerk

100

Welder

101

Wireman

102
Daftary
103
Driver/Helper
104
Helper
105
Helper
/Packer
General
Manager/Director (Marketing)
General
Manager/Director (Marketing)
All
Penalties
Joint
Chief Executive Officer/Deputy Chief Executive Officer
106
Attendant
107
Chowkidar
108
Flayer
109
Helper
Manager-I
/ Assistant General Manager/Manager-II/Deputy Director
(for
minor penalties) (I)to(v)
General
Manager/Director (Marketing)(for minor penalties)(i) to (v)
110
Helperand Peon-cum-Watchman
111
HelperAssembly
112
HelperFitter
113
Helper
M.C.Operator
114
Helper
MC Shop
115
Helper
Tinsmith
116
Helper
Turner
117
Helper

Welder
118
Helper/ Carpenter
119
Mazadur
120
Mechanic-III
121
Packer
122
Peon
123
Peon/Watchman
124
Peon-cum-Watchman
General
Manager/Director (Marketing)
General
Manager/Director (Marketing)
All
Penalties
Joint
Chief Executive Officer/Deputy Chief Executive Officer
125
Salesman-IV
126
ShopAssistant
127
Storekeeper
Manager-I
/ Assistant General Manager-II/Deputy Director
(for
minor penalties)(i)to(v)
General
Manager/Director (Marketing) (for minor penalties)(i)to(v)
128
Sweeper
129
Sweeper
/Watchman
130
Tanner
/Master/ Flesher/Watchman/Helper/Worker/Packer
131
Watchman
132
Watchman
Packer

Note - For the posts which are not covered in the Schedule or to be created from time to time the appointing authority, authority competent to impose penalties and appellate authority shall be the same authorities as are provided for post of equivalent pay scales in this Schedule.

Related AI tags, queries and research notes

Translation